

## THE ORDER THE COURT OWES YOU WITHOUT ANY PETITION, AND HOW TO ASK FOR IT

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

START HERE, BECAUSE THE STATUTE DOES NOT ASK YOU TO FILE ANYTHING.

Government Code Sec. 411.0729 names NO FILING PARTY and requires NO PETITION. Read at source, the section says the court holds a hearing on whether issuing the order is in the best interest of justice and, unless it finds that it is not, THE COURT ENTERS THE ORDER. There is no waiting period. On that route nothing is filed and NO FILING FEE ARISES.

So the first thing to do is not to fill in a petition. It is to find out whether the order already issued, and if it did not, to ask the court to do what the section says it does.

STEP 1 - CHECK WHETHER IT ALREADY ISSUED. Get your Texas DPS criminal history record from the Department of Public Safety Crime Records Service, following DPS form CR-63. If the misdemeanour is already sealed, the court has done this and there is nothing to file and nothing to pay.

STEP 2 - GATHER WHAT PROVES YOU ARE INSIDE THE SECTION. Four things have to be true and each has a record behind it:

- the offence is a MISDEMEANOUR, and you were placed on community supervision for it, including deferred adjudication community supervision. The judgment or the order placing you on community supervision proves it;
- you SUCCESSFULLY COMPLETED all the conditions of that community supervision. The clerk of that court has the record;
- after committing the offence you elected to take part in, and SUCCESSFULLY COMPLETED, a court-approved VETERANS REEMPLOYMENT PROGRAMME established under Subchapter H-1, Chapter 42A, Code of Criminal Procedure. The programme or the court that approved it has the record;
- you are a VETERAN of the United States Armed Forces, including the reserves, the national guard or the state guard. Your discharge paperwork proves it.

SOMETHING THIS SECTION DOES NOT ASK OF YOU. Under Sec. 411.0729(b) the section applies REGARDLESS of whether you meet the other eligibility criteria in the subchapter, so the Government Code Sec. 411.074 basic conditions that gate almost every other nondisclosure section do not gate this one. The petition in this packet says so on its own face at paragraph 3.

STEP 3 - ASK THE COURT. Contact the clerk of the court that placed you on community supervision and ask whether the court will set the Sec. 411.0729 hearing without a petition, or whether that court wants a petition filed. Courts differ, which is why OCA publishes a model petition for a section that does not require one.

**IF THE COURT WANTS A PETITION - AND ONLY THEN.**

The next two documents in this packet are the OCA model petition and the OCA model order for Sec. 411.0729. They are marked **CONDITIONAL** for that reason. Do not file them because they are in the packet; file them because the clerk told you that court requires it, or because the court has not held the hearing.

**WHERE IT GOES.** The clerk of the court that placed you on community supervision, who forwards it to the court. This is **NOT** the county of arrest. Under Government Code Sec. 411.0745(a) you may file in person, electronically or by mail. OCA instructions say that in most courts a proposed order must be submitted with the petition, which is why the proposed order is here.

**ONE OFFENCE, ONE ORDER.** An order of nondisclosure applies to a single offence. If you want more than one offence sealed, that takes more than one order.

**WHAT IT COSTS IF YOU DO FILE.** Government Code Sec. 411.0745(b) requires payment of the fee that generally applies to filing a **CIVIL CASE**. That subsection sets the **TYPE** of fee, not an amount: there is no flat statutory figure and your county's civil filing fee schedule governs. OCA describes the total as typically about \$280, varying by county. **CALL THE CLERK OF THAT COURT AND ASK** before you go.

**AND THE NUMBER TO IGNORE: \$28.** You may have read that an order of nondisclosure costs \$28. **THAT FIGURE IS NOT YOURS ON EITHER ROUTE HERE.** It belongs only to the no-petition route under Government Code Sec. 411.072(c), an entirely different section, and the committed record states in terms that it is not a filing fee at all.

**PARAGRAPH 6 OF THE PETITION IS MARKED BY HAND.** The petition prints two choices there - the required filing fees and court costs, or a Statement of Inability to Afford Payment of Court Costs - and unlike every other control on that form there is **NO FILLABLE BOX** behind them. Mark the one that applies to you with a pen.

**IF YOU CANNOT AFFORD IT.** The **STATEMENT OF INABILITY TO AFFORD PAYMENT OF COURT COSTS** under Texas Rule of Civil Procedure 145 is in this packet, on the statewide bilingual form approved by the Supreme Court of Texas in Misc. Docket No. 22-9090. Rule 145 requires the clerk to make that form available **WITHOUT CHARGE AND WITHOUT YOUR HAVING TO ASK**, so you are entitled to it whether or not you use the copy here. It is sworn under penalty of perjury: fill it from pay statements, benefit letters and bills, not from memory. Nothing on it is filled in for you except your own name, date of birth, address, telephone number and email, because the platform holds no financial fact about anyone.

**PAGE 11 OF THE STATEMENT ASKS FOR YOUR DATE OF BIRTH AGAIN**, in three boxes under 'My date of birth is / Mi fecha de nacimiento es.' Copy the month, day and year from the date of birth already printed on page 2. The platform leaves the whole line blank because the month box shares one AcroForm field with the notary's month on page 12; writing it electronically would also write the notary's blank. Leave the notary month alone.

WHO GIVES NOTICE TO THE STATE - AND IT IS NOT YOU. Under Sec. 411.0745(e), on receipt of a petition THE COURT provides notice to the State and an opportunity for a hearing, and the committed record states that you should not be charged for that notice. On the statutory route the court holds the hearing of its own motion. You serve nobody either way.

NOTARIZATION. Subchapter E-1 does not require the petition to be notarized. County practice may differ. Ask the clerk.

#### WHEN TO STOP AND GET HELP INSTEAD.

The committed track registry for this route records these as the points where self-help ends, in its own words:

- Any family violence finding or family violence allegation anywhere in the record.
- Any prior conviction or deferred adjudication other than a fine-only traffic offence, where the target section carries a first-time-offender condition.
- The prosecutor opposes the petition or requests a hearing.
- Any dispute about whether the sentence, fines, costs or restitution were completed.
- Immigration consequences.
- Any question whether the offence was violent or sexual in nature, which is a court determination under Gov't Code 411.0735.

- The court finds that issuance is not in the best interest of justice.

- Veteran status or completion of the Subchapter H-1 programme cannot be established.

This packet adds four more of its own, taken from the assertions the forms in it actually make:

- The offence is a FELONY. Section 411.0729 reaches a misdemeanour only.
- You did not successfully complete ALL the conditions of your community supervision.
- The programme you completed was not a court-approved veterans reemployment programme under Subchapter H-1, Chapter 42A, Code of Criminal Procedure, or you are not sure that it was.
- You cannot establish veteran status, or you cannot establish completion of the programme. The petition asserts both about you.

#### DOCUMENTS TO GET FIRST, AND WHO HAS THEM.

- Your Texas DPS criminal history record - the Texas Department of Public Safety Crime Records Service, following DPS form CR-63. It shows whether the order already issued.
- The judgment or the order placing you on community supervision - the clerk of that court. It carries the offence wording and the cause number.
- The record that you successfully completed the veterans reemployment programme and all other conditions of community supervision - the programme, or the clerk of that court. It carries the completion date this section turns on.
- Your discharge paperwork or other proof of veteran status.

Cause No. \_\_\_\_\_  
(1)

In the Matter of

§ In the

§ \_\_\_\_\_  
(2)

Maria-Alejandra O'Shaughnessy-Whitfield  
(3)

§ \_\_\_\_\_ County, Texas  
(4)

## **Petition for Order of Nondisclosure** **Under Section 411.0729**

Maria-Alejandra O'Shaughnessy-Whitfield (5) ("Petitioner") respectfully petitions the court for an order of nondisclosure under Government Code Section 411.0729 for the offense detailed below.

### **1. Successful Completion of Veterans Reemployment Program**

Petitioner was placed on community supervision or deferred adjudication community supervision for the misdemeanor offense of \_\_\_\_\_ (6) in Criminal Cause No. \_\_\_\_\_. (7) On or after placement on community supervision, Petitioner elected to participate in a veterans reemployment program established under Subchapter H-1, Chapter 42A, Code of Criminal Procedure. Petitioner successfully completed the program and all other conditions of community supervision or deferred adjudication community supervision on \_\_\_\_\_. (8) Proof of Petitioner's completion of the program \_\_\_\_\_ (9) attached.

### **2. Petitioner Satisfies the Requirements of Section 411.0729, Gov't Code**

Petitioner satisfies the requirements of Sec. 411.0729 of the Government Code in that:

- The offense for which the order is requested is a misdemeanor offense;
- Petitioner was placed on community supervision or deferred adjudication community supervision for the offense;
- Petitioner is a veteran of the United States Armed Forces, including a member of the reserves, national guard, or state guard;
- Petitioner successfully completed a veterans reemployment program approved by the court and all conditions of Petitioner's community supervision.

**3. Petitioner Does Not Have to Satisfy the Requirements of Section 411.074, Gov't Code**

The statute does not require Petitioner to satisfy the requirements of Government Code Section 411.074. *See Sec. 411.0729(b), Gov't Code.*

**4. Petitioner is Entitled to File a Petition for an Order of Nondisclosure Under Section 411.0729, Gov't Code**

A person is entitled to file a petition for an order of nondisclosure under Government Code Section 411.0729 if the person satisfies the requirements of the section.

As indicated above, Petitioner satisfies the requirements of the section.

**5. Issuance of an Order of Nondisclosure is in the Best Interest of Justice**

Issuance of an order is in the best interest of justice.

**6. The Fee to File the Petition has been Paid or Otherwise Satisfied**

Filing fees and court costs may be required to file this petition.

If so, Petitioner has included <sup>(10)</sup>

the required filing fees and court costs.

a Statement of Inability to Afford Payment of Court Costs.

## **7. Prayer for Relief**

Petitioner asks the Court to grant Petitioner's request for an order of nondisclosure under Government Code Section 411.0729.

Respectfully submitted,

\_\_\_\_\_  
Signature <sup>(11)</sup>

Maria-Alejandra O'Shaughnessy-Whitfield  
\_\_\_\_\_  
Printed Name <sup>(12)</sup>

\_\_\_\_\_  
Address <sup>(13)</sup>

\_\_\_\_\_  
City, State, Zip <sup>(14)</sup>

(361) 555-0199 ext. 4417  
\_\_\_\_\_  
Telephone Number <sup>(15)</sup>

Cause No. \_\_\_\_\_

In the Matter of

§ In the

§ \_\_\_\_\_

Maria-Alejandra O'Shaughnessy-Whitfield

§ \_\_\_\_\_ County, Texas

## **Order of Nondisclosure** **Under Section 411.0729**

On \_\_\_\_\_, the Court considered Petitioner's petition for an order of nondisclosure under Government Code Section 411.0729.

The State was given notice of the petition.

The Court conducted a hearing on \_\_\_\_\_.

After consideration and a hearing, the Court **FINDS** that Petitioner participated in a veterans reemployment program for the misdemeanor offense(s) of \_\_\_\_\_, as charged in Criminal Cause No. \_\_\_\_\_, for which Petitioner was placed on community supervision, including deferred adjudication community supervision.

The Court **FURTHER FINDS** that Petitioner successfully completed the program and all other conditions of Petitioner's community supervision and issuance of the order is in the best interest of justice.

Accordingly, **IT IS HEREBY ORDERED** that criminal justice agencies are prohibited from disclosing to the public criminal history record information related to the above-referenced offense(s).

**IT IS FURTHER ORDERED** that the criminal history record information pertaining to the arrest and prosecution of Petitioner for the above-referenced offense(s), as reflected in the above-referenced criminal cause number, shall be sealed and disclosed only to individuals and agencies listed in Government Code Section 411.076(a).

**IT IS FURTHER ORDERED** that the court clerk shall send all relevant criminal history record information contained in this order or a copy of this order to the Crime Records Service of the Texas Department of Public Safety (hereinafter “DPS”) by certified mail (return receipt requested), secure electronic mail, electronic transmission, or facsimile transmission no later than the 15<sup>th</sup> business day after the order issues, in accordance with Government Code Section 411.075(a).

**IT IS FURTHER ORDERED** that DPS shall seal the criminal history record information that is the subject of this order and forward the relevant information contained in this order or a copy of this order to all state and federal agencies listed in Government Code Section 411.075(b) by certified mail (return receipt requested), secure electronic mail, electronic transmission, or facsimile transmission no later than 10 business days after receiving information contained in this order or a copy of this order from the court clerk, in accordance with Government Code Section 411.075(b).

**IT IS FURTHER ORDERED** that a person, agency, or entity shall seal any criminal history record information that is the subject of this order and maintained by the person, agency, or entity no later than 30 business days after the person, agency, or entity

receives relevant information contained in this order or a copy of this order from DPS, a court clerk, or the person who is the subject of the order, in accordance with Government Code Section 411.075(d).

**IT IS FURTHER ORDERED** that the clerk shall seal all court records containing information that is the subject of this order as soon as practicable after the clerk sends a copy of this order or all relevant criminal history record information contained in this order to DPS, in accordance with Government Code Section 411.076(b).

Signed on \_\_\_\_\_.

\_\_\_\_\_  
Judge Presiding

\_\_\_\_\_  
Court/County

**NOTICE: THIS DOCUMENT CONTAINS SENSITIVE DATA**  
**AVISO: ESTE DOCUMENTO CONTIENE INFORMACIÓN**  
**CONFIDENCIAL**



## **Statement of Inability to Afford Payment of Court Costs or an Appeal Bond**

### **Declaración sobre Incapacidad de Pago de Costas de Tribunal o de una Fianza de Apelación**

**Cause Number**  
**Número de Caso**

\_\_\_\_\_

The Clerk's office will fill in the Cause Number when you file this form.

El Secretario del Tribunal anotará el Número de Caso cuando usted presente este formulario.

\_\_\_\_\_  
v.  
\_\_\_\_\_

Copy information listed at the top left of the petition here.

Copie aquí la información ubicada en la parte superior izquierda del escrito de la demanda.

Copy information listed at the top right of the petition here.

Copie aquí la información ubicada en la parte superior derecha del escrito de la demanda.

\_\_\_\_\_  
Court Number  
Número del Tribunal

\_\_\_\_\_, Texas  
County  
Condado

- ☐ District Court  
Tribunal de Distrito
- ☐ County Court  
Tribunal del Condado
- ☐ County Court at Law  
Tribunal Estatutario
- ☐ Justice Court  
Juzgado de Paz
- ☐ Probate Court  
Juzgado Sucesorio

## 1. Your Information / Su Información

- My full legal name is / Mi nombre legal completo es

Maria-Alejandra O'Shaughnessy-Whitfield

First Middle Last / Nombre de Pila Segundo Nombre Apellido

- My date of birth is / Mi fecha de nacimiento es

12/31/1972

Month Day Year / Mes Día Año

- My address is / Mi dirección es

Home / Domicilio 1188 Upper Notch Crossing Road, Apartment 14B, Corpus Christi, Texas 78418-2214

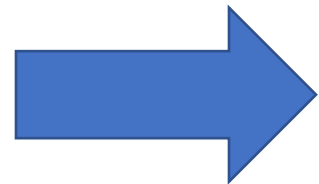
Mailing / Dirección Postal

- My phone number / Mi número telefónico (361) 555-0199 ext. 4417

- My email I check often / Mi correo electrónico que reviso con frecuencia

maria.alejandra.oshaughnessy.whitfield@longmailexample.org

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## 2. About My Dependents / Mis Dependientes

"The people who depend on me financially are listed below." **Use initials only for children under 18.** If needed, attach a separate piece of paper to list more dependents.

"Las personas a continuación dependen económicamente de mí." **Use iniciales para los menores de 18 años** y, si es necesario, anexe una hoja por separado para enumerar a todos sus dependientes.

| Name<br>Nombre | Age<br>Edad | Relationship to me<br>Parentesco Conmigo |
|----------------|-------------|------------------------------------------|
|                |             |                                          |
|                |             |                                          |
|                |             |                                          |
|                |             |                                          |
|                |             |                                          |

## 3. Are you represented by Legal Aid? ¿Está siendo representado por alguna entidad de asistencia legal?

**Check only one box. Seleccione solo una casilla.**

☐ I am being represented in this case for free by an attorney who works for a legal aid provider or who received my case through a legal aid provider. I have attached the certificate the legal aid provider gave me as "Exhibit: Legal Aid Certificate."

Me está representando gratuitamente un abogado que trabaja para una entidad de asistencia legal o que recibió mi caso de una entidad de asistencia legal. El certificado que la entidad de asistencia legal me entregó lo adjunto bajo el título, "Anexo: Certificado de Asistencia Legal."

or / o

☐ I am not represented by legal aid.

No me está representando ninguna entidad de asistencia legal.



#### 4. Public Benefits / Beneficios de Asistencia Pública

- Do you or any of your dependents receive public benefits?  
*¿Recibe usted o sus dependientes beneficios de asistencia pública?*

☐ Yes / *Sí*

☐ No / *No*

- If you answered yes, check all that apply and attach proof to this form, such as a copy of an eligibility form or check.

*Si respondió con un Sí, marque todas las casillas que apliquen y adjunte a este formulario comprobantes, tales como una copia de la carta autorizando que reciba estos beneficios o una copia del cheque que recibe.*

☐ Food stamps/SNAP  
*Cupones de comida/SNAP*

☐ TANF

☐ Medicaid

☐ CHIP

☐ SSI/SSDI

☐ WIC

☐ Lifeline

☐ Public Housing or Section 8 Housing  
*Asistencia de Vivienda / Programa de Vivienda bajo Sección 8*

☐ Low-Income Home Energy Assistance  
*Asistencia con Energía Eléctrica*

☐ Community Care via HHS  
*Ayuda Comunitaria bajo HHS*

☐ LIS in Medicare ("Extra Help")  
*Subsidio Adicional de Medicare bajo el Programa LIS*

☐ Needs-based VA Pension  
*Pensión para Veteranos de Guerra en función a necesidades*

☐ Child Care Assistance under Child Care and Development Block Grant  
*Asistencia con Guardería bajo el Programa CCDBG*

☐ County Assistance, County Health Care, or General Assistance (GA)  
*Asistencia del Condado, Asistencia Médica del Condado, o Asistencia General (GA)*

☐ Other / *Otros beneficios*

☐ Other / *Otros beneficios*



**5. What are your monthly income sources? ¿Cuáles son sus fuentes de ingresos mensuales?**

➤ My **take-home** pay is \$\_\_\_\_\_ in monthly wages.

Mi **pago neto** es \$\_\_\_\_\_ en sueldo mensual.

➤ I work as a \_\_\_\_\_ (your job title) for \_\_\_\_\_ (your employer).

Yo trabajo como \_\_\_\_\_ (título de su puesto) para  
\_\_\_\_\_ (compañía o jefe).

➤ \$\_\_\_\_\_ is my total **monthly** income / son mis ingresos totales **al mes**.

These are my income sources. **Estas son mis fuentes de ingresos.**

➤ \$\_\_\_\_\_ in unemployment / en beneficios de desempleo.

I have been unemployed since \_\_\_\_\_ (date).

He estado desempleado desde \_\_\_\_\_ (indique fecha).

➤ \$\_\_\_\_\_ in public benefits / en beneficios de Asistencia Pública.

➤ \$\_\_\_\_\_ from people in my household other than my spouse / de ingresos de otras personas en mi hogar que no son de mi cónyuge.

➤ \$\_\_\_\_\_ from retirement or pension / de jubilación o pensión.

➤ \$\_\_\_\_\_ from tips or bonus / de propinas o bonos.

➤ \$\_\_\_\_\_ from disability / de discapacidad.

➤ \$\_\_\_\_\_ from worker's comp / de compensación al trabajador.

➤ \$\_\_\_\_\_ from social security / de seguro social.



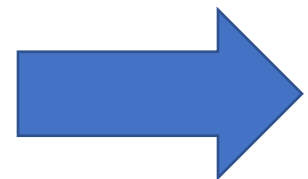
- \$\_\_\_\_\_ from military housing / de vivienda militar.
- \$\_\_\_\_\_ from dividends, interest, or royalties / de dividendos, intereses, o regalías.
- \$\_\_\_\_\_ from child or spousal support / de manutención de menores o manutención conyugal recibida.
- Answer only if your spouse is not your opponent. Responda tan sólo si su ccónyuge no es parte contraria en esta causa legal.\$\_\_\_\_\_ from my spouse's income / de ingresos de mi cónyuge.
- \$\_\_\_\_\_ from other jobs/sources of income / de otros trabajos/ fuentes de ingresos.

Describe / describa:

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Pase a la siguiente página

**6. What is the value of your assets or property? ¿Cuál es el valor de sus bienes o propiedades?**

My property includes:  
Mis bienes incluyen:

Value / Valor

The value is the amount the item would sell for less the amount you still owe on it, if anything.

El valor de sus bienes es la cantidad por la que la propiedad o pertenencia se vendería, menos el monto que aún se adeuda, si lo hubiera.

➤ Cash  
Dinero en efectivo

\$

➤ Bank accounts, other financial assets  
Cuentas bancarias, otros bienes financieros

\$

\$

\$

➤ Cars and boats (make and year)  
Automóviles, lanchas (modelo y año)

\$

\$

\$

➤ Other property like jewelry, stocks, land, a second house. (Do not list your homestead.)

Otros bienes como joyas, acciones, terrenos, una segunda casa. (No indique su hogar familiar.)

\$

\$

\$

**Total Value of Property**  
**Valor Total de Sus Bienes**

\$



**7. What are your monthly expenses that are not deducted from your paycheck?  
¿Cuáles son sus gastos mensuales que no son descontados de su cheque de sueldo?**

| My monthly expenses are:<br>Mis gastos mensuales son:                                       | Amount<br>Cantidad |
|---------------------------------------------------------------------------------------------|--------------------|
| ➤ Rent/house payments; maintenance<br>Alquiler/hipoteca; mantenimiento de casa              | \$                 |
| ➤ Food and household supplies<br>Alimentos y artículos para el hogar                        | \$                 |
| ➤ Utilities and telephone<br>Luz, gas, agua y teléfono                                      | \$                 |
| ➤ Clothing and laundry<br>Ropa y lavado de ropa                                             | \$                 |
| ➤ Medical and dental expenses<br>Gastos médicos y dentales                                  | \$                 |
| ➤ Insurance (life, health, auto, etc.)<br>Seguros (de vida, médico, de automóvil etc.)      | \$                 |
| ➤ School and childcare<br>Escuelas y guarderías                                             | \$                 |
| ➤ Transportation, auto repair, gas<br>Transportación, reparaciones de automóviles, gasolina | \$                 |
| ➤ Child/Spousal support<br>Manutención a Menores/Manutención Conyugal                       | \$                 |
| ➤ Debt payments to (list):<br>Pagos por deudas hechas a (indíquelos):                       |                    |
|                                                                                             | \$                 |
|                                                                                             | \$                 |
| ➤ Wages withheld by court order<br>Sueldo retenido por orden judicial                       | \$                 |
| ➤ Other expenses (list):<br>Otros gastos (indíquelos):                                      |                    |
|                                                                                             | \$                 |
|                                                                                             | \$                 |
| <b>Total Monthly Expenses<br/>Gastos Totales Mensuales</b>                                  | <b>\$</b>          |



**8. Are there debts or other facts explaining your financial situation?**  
**¿Hay deudas u otros factores que expliquen su situación económica?**

My debts include (list debt and amount owed):

Mis duedas incluyen (indique deuda y la cantidad que debe):

|  |    |
|--|----|
|  | \$ |
|  | \$ |
|  | \$ |
|  | \$ |
|  | \$ |

If you want the court to consider other facts, such as unusual medical expenses, family emergencies, etc., attach another page to this form labeled "Exhibit: Additional Supporting Facts."

Si usted desea que el tribunal considere otros factores, tales como gastos médicos excepcionales, emergencias familiares, etc., adjunte al formulario otra hoja con esta información y bajo el título, "Anexo: Información Adicional de Apoyo."

**9. Ability to Pay Court Costs. Declaración sobre su Habilidad de Pagar Costas de Tribunal**

Check only one box. Seleccione tan solo una casilla.

- ☐ I cannot afford to pay court costs. No puedo pagar las costas de tribunal.
- ☐ I cannot furnish an appeal bond or pay a cash deposit to appeal a justice court decision, and I cannot afford to pay court costs.

No puedo aportar una fianza de apelación ni pagar un depósito en efectivo para apelar la decisión judicial de un magistrado, y no puedo pagar costas de tribunal.

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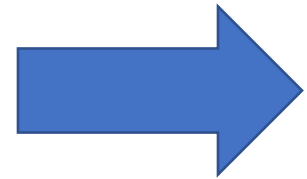
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**10. Declaration/Affidavit. Declaración Escrita Bajo Juramento.**

Fill out **only one** box. If you fill out the Declaration, you will not need to sign the form in front of a notary public. If you do not want to list your address for privacy or safety concerns, take the form and photo identification, and fill out the Affidavit box in front of a notary public.

Llene tan **solo una** opción. Si usted llena la Declaración, no necesitará firmar el formulario ante un notario. Si usted no quiere que aparezca su domicilio en el documento para conservar su privacidad o por motivos de su seguridad, lleve el formulario y una identificación con fotografía y llene la sección de la Declaración Escrita Bajo Juramento ante un Notario.

Go to next page



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## Option 1 / Opción 1

**Declaration:** I declare under penalty of perjury that the foregoing is true and correct.

**Declaración:** Yo declaro bajo pena de perjurio que la información a continuación es correcta y verdadera.

➤ My name is / Mi nombre es

Maria-Alejandra O'Shaughnessy-Whitfield

➤ My date of birth is / Mi fecha de nacimiento es

\_\_\_\_/\_\_\_\_/\_\_\_\_

➤ My address is / Mi domicilio es

1188 Upper Notch Crossing Road, Apartment 14B, Corpus Christi, Texas 78418-2214

Street, city, zip, country

Calle y número, ciudad, estado, código postal, país

➤

Signature  
Firma

➤

Date (month, day, year)  
Fecha (mes, día, año)

➤

County, state  
Condado, estado

# Go to next page



# Pase a la siguiente página

## Option 2 / Opción 2

**Affidavit:** I swear under penalty of perjury that the foregoing is true and correct.

**Declaración Escrita Bajo Juramento:** Yo juro bajo pena de perjurio, que lo que precede es correcto y verdadero.

**You fill out this section.**

**Usted llena esta sección.**

➤ Maria-Alejandra O'Shaughnessy-Whitfield

\_\_\_\_\_  
Your printed name

Su nombre en letra de molde

➤ \_\_\_\_\_  
Your signature  
Su firma

**The notary fills out this section.**

**El Notario llena esta sección.**

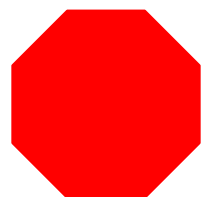
➤ \_\_\_\_\_

Subscribed before me this day of

Juramentado y suscrito ante mí el día de hoy del mes de

\_\_\_\_\_, 20\_\_\_\_

\_\_\_\_\_  
NOTARY  
NOTARIO



## WHAT THE ORDER DOES, AND WHAT TO DO AFTER IT ISSUES

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

## WHAT THE ORDER ACTUALLY DOES - AND WHAT IT DOES NOT.

Nondisclosure is SEALING, not expunction. The order prohibits criminal justice agencies from disclosing the record to the public. The information is still disclosed to the individuals and agencies listed in Government Code Sec. 411.076(a). THE RECORD IS NOT DESTROYED, and you should never say it does not exist.

WHAT HAPPENS AFTER THE JUDGE SIGNS, AND WHO DOES IT. The order itself sets out the chain, and none of it is your job:

- the court clerk sends the order, or the relevant criminal history record information in it, to the Crime Records Service of the Texas Department of Public Safety no later than the 15th business day after the order issues, under Government Code Sec. 411.075(a);
- DPS seals the information and forwards it to the state and federal agencies listed in Government Code Sec. 411.075(b) no later than 10 business days after receiving it from the clerk;
- any person, agency or entity holding the information seals it no later than 30 business days after receiving it, under Government Code Sec. 411.075(d);
- the clerk seals the court records as soon as practicable after sending the order to DPS, under Government Code Sec. 411.076(b).

SO GIVE IT ABOUT THREE MONTHS, THEN CHECK. Pull your Texas DPS criminal history record again, following DPS form CR-63, and confirm the offence is sealed. If it is not, take a certified copy of the signed order to the clerk and ask where it stopped.

KEEP A CERTIFIED COPY OF THE SIGNED ORDER. Ask the clerk for one before you leave. It is the only thing that proves the order exists if a background check turns the record up later.

WHAT YOU MAY SAY AFTERWARDS. Nondisclosure lets you deny the offence in most, not all, settings, and the exceptions are the agencies and entities in Government Code Sec. 411.076(a). This packet does not advise you on any particular question about any particular employer, licence or application. If the answer matters, ask a lawyer before you answer.

ONE ORDER, ONE OFFENCE. If more than one offence is on your record, this order sealed one of them. The others need their own orders and may fall under other sections entirely.

IF THE COURT REFUSED. Section 411.0729 lets the court decline where it finds that issuance is NOT in the best interest of justice. That is a finding, not a formality, and the committed record records it as a point where self-help ends. Get advice rather than refiling.